EnergyWave

energywave.ai • SAFE term summary — a prospective instrument template; no SAFE executed
15 October 2026 · DD-2026-10-15-r5.7-draft

CONFIDENTIAL — DRAFT — FOR DISCUSSION · NO SAFE EXECUTED · NO FUNDING RAISED (FOUNDER, 15 OCT 2026) · AMOUNT AND TERMS [TBD]

# A prospective SAFE, term by term. What the Oct-13 deck proposed, what counsel would set, what is [TBD].

The Oct-13 deck and one-pager proposed a $60,000 SAFE with a three-month runway; the valuation cap, discount and most-favoured-nation terms were “set with counsel” and appear nowhere in the package. On 15 October 2026 the founder stated that **no SAFE has been executed** and no funding has been raised, and that the current amount, instrument and terms are **[TBD]** (ledger S-44). This page is therefore kept as a prospective instrument template — the skeleton of a term sheet with every unset term marked **[TBD]** — so that if a SAFE is chosen, counsel and the founder can fill it without re-deriving the rest. Nothing here is adopted, funded or an offer.

## 1 · TERMS

| Term | Value | Source / status |
|---|---|---|
| Issuer | EnergyWave, Inc., Delaware C-corporation — **not formed** as of 14 Oct 2026 (founder’s statement, ledger S-38); K&L Gates is handling the entity work (founder, 15 Oct 2026, S-44) and its four confirmations are pending. The SAFE cannot be issued until the issuer exists; the file number and date are added on formation. | Deck slide 8; D3 OPEN |
| Instrument | SAFE — simple agreement for future equity — on the Oct-13 deck; none executed (founder, 15 Oct 2026). Whether a SAFE is used at all is **[TBD] — instrument**; if so, its form (post-money or pre-money; standard form or counsel’s own) **[TBD] — SAFE form** | Deck slide 10 DECK · HISTORICAL |
| Amount | $60,000 on the Oct-13 deck and one-pager — a dated proposal, not an adopted or funded amount. Current amount: **[TBD] — current amount** | Deck slides 10–11; one-pager DECK · HISTORICAL |
| Valuation cap | **[TBD] — valuation cap** | One-pager: “terms / cap set with counsel” OPEN |
| Discount | **[TBD] — discount** | OPEN |
| Most-favoured-nation | **[TBD] — MFN** | OPEN |
| Pro rata right | **[TBD] — pro rata side letter** | OPEN |
| Investor(s) | **[TBD] — investor(s) and accredited-investor basis** | OPEN |
| Securities exemption | Rule 506(b) or 506(c). The answer governs whether any deck may reach an investor who has not heard from the company first. No general solicitation until counsel answers. **[Pending: counsel — 506(b) or 506(c)]** | Counsel question list (Legal page §5) OPEN |

| Term | Value | Source / status |
|---|---|---|
| Conversion | Into the next qualifying financing as counsel defines it in the chosen SAFE form, subject to the cap and discount above. Whether the Seed Round described in 02_Seed_Round is priced equity or itself a SAFE is open (register B-2), so no conversion event is identified here. Trigger definitions, change-of-control and dissolution treatment follow the chosen form. | Structure DRAFT |
| Runway purchased | Three months, founder full-time. | Deck slide 10 DECK |
| Information rights | The program commitment applies: investors receive the same gate reports the public does. Any additional rights **[TBD] — information-rights letter** | Program commitments DRAFT |
| Signatory for the issuer | Ian McLean, **[TBD] — officer title on formation — counsel's CEO / Secretary / CFO confirmation pending** | Truong, 5 Oct 2026 (M-19) OPEN |
| Strategic path | Structured to pursue strategic investment from In-Q-Tel — a stated intent, not a relationship; IQT (In-Q-Tel, Inc.) is a founder-selected target (15 Oct 2026). | Deck slide 8 DECK |

## 2 · USE OF PROCEEDS (OCT-13 DECK, ESTIMATED ALLOCATION — HISTORICAL PROPOSAL; CURRENT ALLOCATION [TBD])

| Line | Purpose | Amount | Read against counsel's quotes |
|---|---|---|---|
| Entity formation & legal | C-corp + 501(c)(3) setup | $4,000 | Covers counsel's ~$2,800 formation estimate (Truong, 5 Oct); not yet the 501(c)(3) application. |
| IP / patent counsel retainer | K&L Gates — provisional filings | $25,000 | Covers a $2,000 coversheet provisional and most of a $10k–$20k non-provisional (Majewski, 5 Oct). No fee-authorization evidence is in the package. |
| Founder runway | 3 months, full-time | $24,000 | Founder salary placeholder in the raise model is a separate, later item. |
| Reserve & travel | Investor / advisor meetings | $7,000 | — |
| **Total** | **Capital-readiness round** | **$60,000** | "Estimated allocation — confirm IP retainer and founder runway with counsel" (deck slide 11). |

## 3 · CONTEXT THE INVESTOR WILL ASK ABOUT

**Capital raised to date:** approximately $10,000 including founder contributions, no outside debt or equity (founder's statement, 9 Oct 2026); on 15 Oct 2026 the founder stated that no funding has been raised and no SAFE executed — both dated statements stand, and the reconciliation basis is **[TBD] — reconciliation of the 9 Oct record with the 15 Oct statement**. A competition prize is not capital raised.

**Prior SAFE — closed:** the September checklist lists "Pre-seed SAFE(s) and terms — Have" (DD_Checklist!E10) and Headcount!P4 says a pre-seed SAFE covered runway; on 15 Oct 2026 the founder confirmed "correct no safe

has been done” — **no executed SAFE (founder attestation)**. The workbook entries are preserved in the pinned file as a dated conflict, not corrected.

**Capital Readiness and the Seed Round:** the Oct-13 materials say “not a seed round”; on 15 Oct 2026 the founder directed that this round may be combined with the Seed Round, whose amount and terms are **[TBD]** in 02_Seed_Round. Every term above is a draft for counsel; nothing is an offer.

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Sources: Oct-13 deck slides 8, 10–11 and one-pager (S-01, S-02); counsel originals of 5 Oct 2026 (M-19); Approved_Submission_Corrections_2026-10-09 item 6 (M-06); Raise Model DD_Checklist row 7 (M-02); Counsel_Questions_Consolidated (M-03b); DECISIONS.md D1, D3, D5; founder decisions of 15 Oct 2026 (S-44).